

# Australian disability claims experience

## What can we learn?

Andy Parkinson, Swiss Re Head of L&H Claims UKIA  
26 November 2015

# Agenda

- Symptoms
- Causes
- Lessons

# Symptoms

- What happened?

# Australian Super Funds

- Superannuation Funds i.e. saving for retirement
- Primarily investment arrangement, with default minimum insurance benefits with the option of higher cover:
  - Death and accelerated TPD cover
  - Terminal Illness
  - Income Protection
- Open to:
  - Public service workers
  - White collar
  - Education
  - Health
  - Government employees
  - Police
  - Blue collar
  - Mine workers
  - ...lots!

## The headlines

### Millions face super premium sting

By John Collett May 28, 2013, 2:12 p.m.



The cost of cover is going up. Photo: Tamara Voninski

**The Sydney Morning Herald**

# The Sydney Morning Herald: John Collett, 28 May 2013

- *AustralianSuper's 2 million members to face increased premiums:*
  - *almost 40% for death and TPD*
  - *about 25% for IP*
  - *most premiums deducted automatically from fund balance*
- *More price rises expected as funds renegotiate prices with their insurers*
- *Why? – Jim Minto, managing director of TAL Australia:*
  - *more claims, economy remains weak, unemployment rises*



# APRA Quarterly Financial Results

(AUD\$ millions)

| Date   | Group<br>Lump Sum<br>Risk   |
|--------|-----------------------------|
|        | Profit / loss<br>before tax |
| Mar-13 | 14                          |
| Jun-13 | -187                        |
| Sep-13 | -185                        |
| Dec-13 | -296                        |
| Mar-14 | -11                         |
| Jun-14 | -5                          |
| Sep-14 | 36                          |

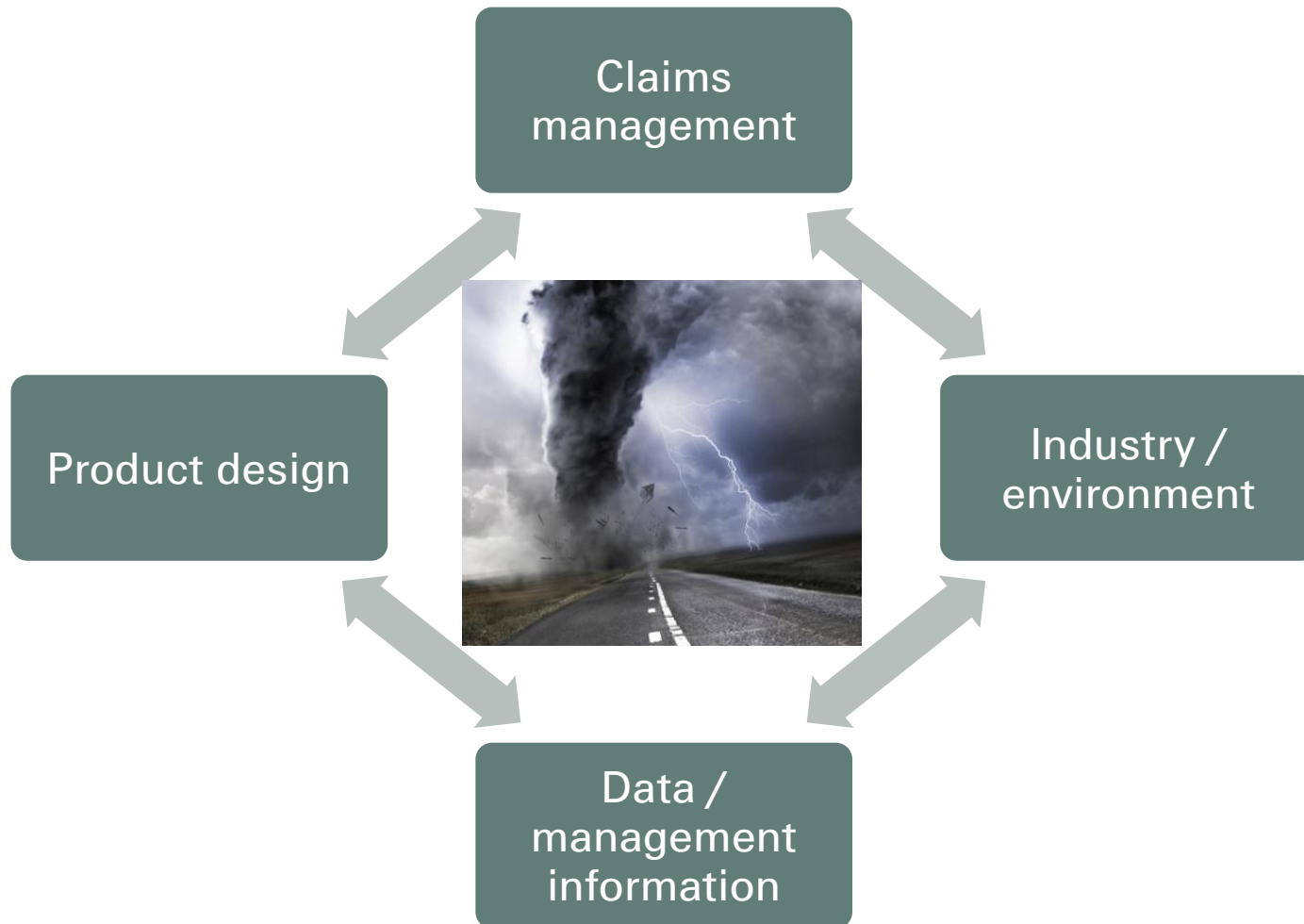
| Date   | Individual<br>Disability<br>Income |
|--------|------------------------------------|
|        | Profit / Loss<br>Before Tax        |
| Mar-13 | 68                                 |
| Jun-13 | 93                                 |
| Sep-13 | -84                                |
| Dec-13 | -34                                |
| Mar-14 | 15                                 |
| Jun-14 | -280                               |
| Sep-14 | 16                                 |
| Dec-14 | -432                               |
| Mar-15 | -166                               |

- Availability of (re)insurance cover at risk

# Causes

- the accumulation of risk





# Protection market growth & changing economic climate

- Consolidation of funds
- Difficult for Funds to compete on investment return
- Insurance benefits seen as an area for differentiation, resulting in :
  - higher levels of default cover
  - generous options to increase cover without underwriting
  - range of cover available to a wider occupation group
- Key vehicle for addressing Australia's underinsurance problem
- \$3.7 billion premium at March 2013, risen from \$2.4 billion in 2009
- Inforce growth 11% per annum

## ‘Typical’ default benefits (1 unit)

- Life, plus accelerated TPD (and terminal illness)
- Fixed unit price with cover varying based on current age
- For example, age 35, gender neutral pricing
  - Standard Risk \$50,000
  - Low risk \$85,000
  - Professional \$100,000
- Group Salary Continuation (IP cover)
  - 2 year benefit, 60 day deferred period (option of 30 day)
  - Pays on total disability or partial disability (totally sick for at least 14 days)
    - \$500 per month
    - up to 40 units no health evidence, to 100 units with evidence

## 'Typical' TPD definition

- Unable to work for 3 consecutive months and unlikely to ever be able to engage in "any occupation".
- If you are professional or managerial (i.e. salary > \$80k; 80% of employment sedentary tasks in an office) then "any occupation" = "own"
- For all others "any" = "occupation based on your skills and knowledge acquired through previous education, training and experience".
- Above applies to the employed and those unemployed for less than 12 months.
- Work tasks applies to other lives.
- Loss of limbs and certain medical conditions presumed to count as disability.
- Similar definitions apply to the income protection benefit.

# Product design

- Cover for all
- Occupation-based definition for all
- "Unlikely, ever"
- Education training and experience (ET&E)
- 3-6 month waiting period v optimal treatment
- Cover remains when contributions cease
- Non-underwritten, generous increases
  - 26% of all claims were for PECs
  - 34% of claimants who opted for higher cover were claiming for PECs
- Imprecise wording on date of insured event



## Swiss Re Head of L&H ANZ

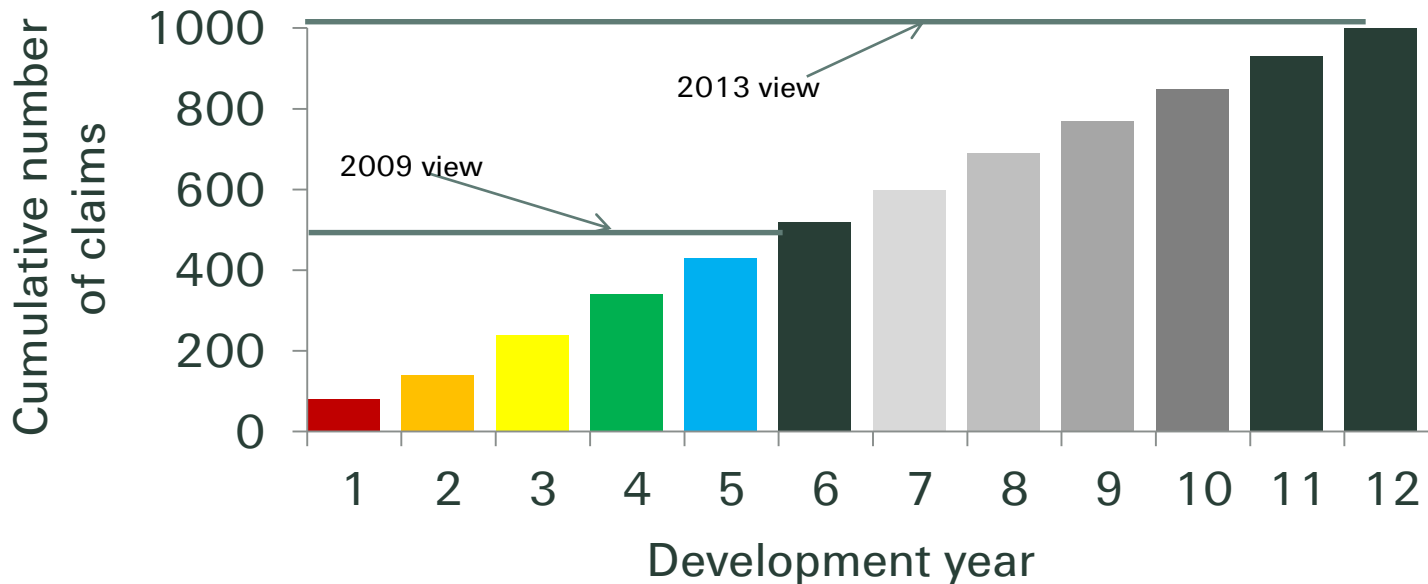
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## 2012/2013 quoting cycle

- Significantly more claims than expected
- Cost of claims much higher than expected
- Late reporting of claims





Lots of "vertical" lines



## Industry / environment

- Abundance of Super
- Funds have buying power
- Legislation
- Consumer awareness/behaviour
- Unions
- Solicitors
- Case law
- Broker advice to 'poor risks'
- Medical professionals:

– Zahr v TAL Life Ltd – *"After years of consultations [Dr Smith] has become the plaintiff's loyal advocate rather than his inquisitor."*

**Fight For Fair**

Superannuation & Disability Insurance



**Stand Up For Your Rights**

**No Win, No Fee**





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# Claims management

- Late start
- Shortage of industry best practice
- Many parties; long delays
- Shortage of skilled claims assessors
- No direct member contact
- Solicitor input
- Claims toolkit – objective challenge
- Workers Comp process
- "Hands tied"



# Lessons

- and what's happened since?

- *"Never let a good crisis go to waste."* – Winston Churchill

## Australian Prudential Regulation Authority 2015 annual report: *review of insurance in superannuation*

- The industry has made substantial progress.

However, still identified need for...

- improved insurance data management; detailed, accurate and timely
  - greater scrutiny of insurance benefit design to ensure sustainability and its appropriateness for members
- 
- Ongoing work of the IFF (Industry Fund Forum) and FSC (Financial Services Council) to address market issues around data and benefit design
  - Retail disability market still under-priced and products too generous?



## Actions taken

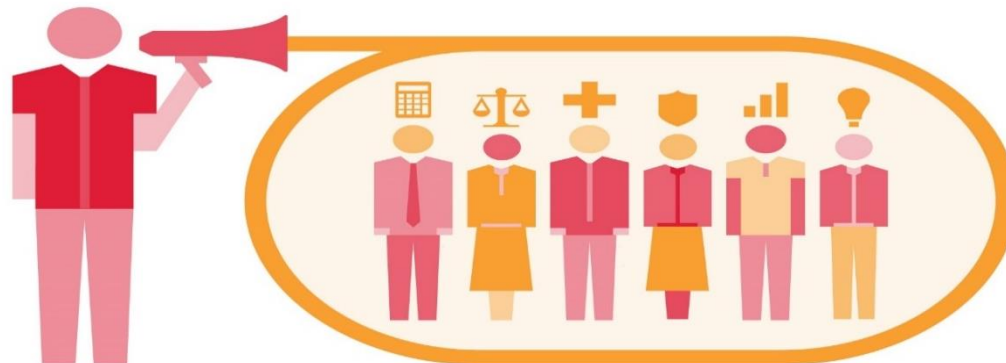
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# Self-analysis

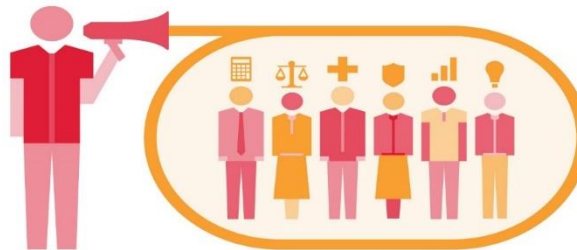
- Pressure for new, innovative products in a competitive market.
- What evidence is there this will be a problem? Prove it.
- People don't and wouldn't behave like that.
- Consumer focussed regulatory environment.
- Claims can manage that risk, can't they?
- Our competitor does it and so...

...sound familiar?



# Self-analysis

- Do we have products with the potential for late reported claims?
- Do we really have enough data to price correctly?
- Do we properly allow for the risk of anti-selective behaviour?
- Is there an alignment of interest between the customer and insurer? Do we encourage 'poor' behaviours?
- How vulnerable are we to other professions and 'consumer group' behaviour?
- Do underwriters, actuaries and claims work together sufficiently?
- Are we investing enough in the capability of our claims teams?



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